THE MARINE ENVIRONMENT PROTECTION COMMITTEE RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Marine Environme nt Protection Committee conferred upon it by international conventions for the preventio n and control of marine pollution from ships, RECALLING ALSO article 16 of the Internati onal Convention for the Prevention of Pollution from Ships, 1973, as modified by the Pro tocols of 1978 and 1997 relating thereto (MARPOL), which specifies the amendment procedu re and confers upon the appropriate body of - from Ships, 1973, as modified by the Proto cols of 1978 and 1997 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the Organization the function of considering am endments thereto for adoption by the Parties, RECALLING FURTHER regulation 13 of MARPOL Annex VI, which makes the Technical Code on Control of Emission of Nitrogen Oxides from Marine Diesel Engines (hereafter "NO x Technical Code 2008") mandatory under that Annex, HAVING CONSIDERED, at its eighty -third session, draft amendments to the NOx Technical C ode 2008 concerning the certification of an engine subject to substantial modification o r being certified to a Tier to which the engine was not certified at the time of its ins tallation , as appropriate, approved at its eighty -second session and duly circulated i n accordance with article 16(2)(a) of MARPOL, 1 ADOPTS, in accordance with article 16(2) (d) of MARPOL, amendments to the NO x Technical Code 2008, the text of which is set out in the annex to the present resolution; 2 DETERMINES, in accordance with article 16(2)(f)(ii) and (iii) of MARPOL, that the - Technical Code 2008, the text of which is set out in the annex to the present resolution; 2 DETERMINES, in accordance with article 16(2)(f)(ii) and (iii) of MARPOL, that the amendments shall be deemed to have been accepted on 1 March 2026 unless prior to that date not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet have communicated to the Organization their objection to t he amendments; 3 INVITES the Parties to note that, in accordance with article 16(2)(g)(i i) of MARPOL, the said amendments shall enter into force on 1 September 2026 upon their acceptance in accordance with paragraph 2 above; 4 ALSO INVITES the Parties to consider the early application of the amendments to the NOx Technical Code 2008 concerning the ce rti